

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

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ALBERTO ARCOS-RODRIGUEZ, JESUS ARCOS-
RODRIGUEZ, YOLANDA RODRIGUEZ,
MAXIMILLIANO ARCOS

SUMMONS

Index No.:

Plaintiff,

The Basis of Venue is:
Location of Incident

-against-

Plaintiff designates Kings
County as the place of trial.

THE CITY OF NEW YORK, NYPD POLICE OFFICER
MICHAEL YEN, SHIELD NO. 10914, NYPD POLICE
OFFICER KYLE SFORZA, SHIELD NO. 17112 AND
NYPD POLICE OFFICERS JOHN DOES NUMBERS ONE
THROUGH TEN,

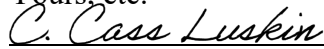
Defendants.

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To the above named Defendants:

You are hereby summoned to answer the Verified Complaint in this action, and to serve a copy of your Verified Answer to the Verified Complaint, or, if the Verified Complaint is not served with this Summons, to serve a notice of appearance on the Plaintiff's attorneys within twenty days after the service of this Summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

DATED: New York, New York
July 27, 2022

Yours, etc.

C. Cass Luskin, Esq.
Shulman-Hill, PLLC
Attorneys for Plaintiff
1 State Street Plaza
15th Floor
New York, New York 10004
(212) 203-1090

TO: THE CITY OF NEW YORK, Corporation Counsel, 100 Church Street, NY, NY 10007
OFFICER MICHAEL YEN, 830 4th Avenue, Brooklyn, New York, 11232
OFFICER KYLE SFORZA, 830 4th Avenue, Brooklyn, New York 11232

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

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ALBERTO ARCOS-RODRIGUEZ, JESUS ARCOS-
RODRIGUEZ, YOLANDA RODRIGUEZ,
MAXIMILLIANO ARCOS

INDEX NO.:

VERIFIED COMPLAINT

Plaintiff,

-against-

JURY TRIAL DEMANDED

THE CITY OF NEW YORK, NYPD POLICE OFFICER
MICHAEL YEN, SHIELD NO. 10914, NYPD POLICE
OFFICER KYLE SFORZA, SHIELD NO. 17112 AND
NYPD POLICE OFFICERS JOHN DOES NUMBERS ONE
THROUGH TEN,

Defendants.

----- X

Plaintiff ALBERTO ARCOS-RODRIGUEZ, JESUS ARCOS-RODRIGUEZ, YOLANDA
RODRIGUEZ, and MAXIMILLIANO ARCOS, by their attorneys, Shulman-Hill, PLLC, as and
for their Verified Complaint herein, alleges upon information and belief as follows:

PRELIMINARY STATEMENT

1. This is a civil rights action to recover money damages arising out of defendants' violation of Plaintiff's rights as secured by the Civil Rights Act, 42 U.S.C. Sections 1983 and 1988, and of rights secured by the Fourth, Fifth and Fourteenth Amendments to the United States Constitution, and the common law and the laws of the State of New York. On June 13, 2021, at approximately 3:00 a.m., Plaintiffs Alberto Arcos-Rodriguez, Jesus Arcos-Rodriguez, Yolanda Rodriguez, and Maximilliano Arcos, while lawfully in the vicinity of the South West corner of 3rd Avenue and 47th Street, County of Kings, New York, was subject to an unlawful arrest, detention, assault, battery and excessive use of force by defendant Police Officers. In doing so, defendant Police Officers punched, kicked, tasered, and pepper sprayed Plaintiffs, causing serious physical injury. Plaintiffs were deprived of their rights under 2021 N.Y.C. Local Law No. 48, N.Y.C. Admin. Code §§ 8 – 802 and their constitutional, common law and statutory rights when the individual defendants unlawfully stopped, detained, assaulted, battered, subjected to excessive force, passed along false accusations to prosecuting attorneys and engaged in the malicious prosecution of Plaintiff, in violation of the Fourth, Fifth and Fourteenth Amendments to the United States Constitution, the common law and the laws of the State of New York.

PARTIES

2. Plaintiffs Alberto Arcos-Rodriguez, Jesus Arcos-Rodriguez, Yolanda Rodriguez, and Maximilliano Arcos are residents of the state of New York.
2. NYPD Police Officer Michael Yen, Shield No. 10914 is and was at all times relevant herein an Officer with the New York City Police Department.
3. NYPD Police Officer Michael Yen, Shield No. 10914 is being sued in their individual and official capacity.
4. Currently and at all times relevant herein, NYPD Police Officer Michael Yen, Shield No. 10914 was assigned to the 72nd Police Precinct of the NYPD.
5. NYPD Police Officer Kyle Sforza, Shield No. 17112 is and was at all times relevant herein an Officer with the New York City Police Department.
6. NYPD Police Officer Kyle Sforza, Shield No. 17112 is being sued in their individual and official capacity.
7. Currently and at all times relevant herein, NYPD Police Officer Kyle Sforza, Shield No. 17112 was assigned to the 72nd Police Precinct of the NYPD.
8. NYPD Police Officers John Does Numbers One Through Ten are and were at all times relevant herein officers, employees, and agents of the New York City Police Department.
9. NYPD Police Officers John Does Numbers One Through Ten are being sued in their individual and official capacities.
10. At all times relevant herein, the individual defendants were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees and officers of the New York City Police Department, and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties. They were acting for and on behalf of the New York City Police Department at all times relevant herein, with the power and authority vested in them as officers, agents and employees of the New York City Police Department and incidental to the lawful pursuit of their duties as officers, employees and agents of the New York City Police Department.
11. Defendant City of New York is a municipal entity created and authorized under the laws of the State of New York. It is authorized by law to maintain a police department, which acts as its agent in the area of law enforcement and for which it is ultimately responsible. The defendant City of New York assumes the risks incidental to the maintenance of a police force and the employment of police officers as said risks attach to the public consumers of the services provided by the New York City Police Department.

12. Plaintiffs in furtherance of their causes of action brought pursuant to New York State law filed a timely Notice of Claim against the City of New York in compliance with the Municipal Law Section 50 and in accordance with New York State law.
13. In accordance with New York State law and General Municipal Law Section 50, Plaintiffs testified at hearings held pursuant to General Municipal Law Section 50-H.
14. More than thirty (30) days have elapsed since service of said Notice of Claim was filed and the City of New York has failed to pay or adjust the claims.
15. This action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving intentional actions, as well as the defendant, and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.
16. Plaintiffs have sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

STATEMENT OF FACTS

17. On June 13, 2021, at approximately 3:00 a.m., Plaintiffs were present in the vicinity of the southwest corner of 3rd Avenue and 47th Street, County of Kings, New York, when the defendant Police Officers unlawfully assaulted Plaintiffs without legal justification.
18. Plaintiffs Alberto Arcos-Rodriguez, Jesus Arcos-Rodriguez, Yolanda Rodriguez, and Maximilliano Arcos were standing outside a venue they rented for a birthday party when they were approached by four Defendant Officers.
19. Plaintiff Maximilliano Arcos attempted to explain to the four Defendant Officers that no one at the venue called for police assistance when twenty more Defendant Officers approached the group and without reason or justification, used excessive force and began to unlawfully arrest Plaintiffs.

Plaintiff Maximilliano Arcos

20. Plaintiff Maximilliano Arcos was hit in the head by three separate Defendant Officers.
21. One Defendant Officer tasered Plaintiff Maximilliano Arcos in his right arm four times causing him to collapse onto the ground.
22. Defendant Officers dragged Plaintiff Maximiliano Arcos on the ground causing friction marks and bleeding to his face.
23. Plaintiff Maximiliano Arcos lost consciousness.
24. When Plaintiff Maximiliano Arcos regained consciousness he was at the precinct.

25. Plaintiff Maximiliano Arcos woke up with immense pain in his head from the assault. Plaintiff Maximiliano Arcos head “felt like it would explode.”
26. Plaintiff Maximiliano Arcos face was still bleeding when he woke up.
27. Plaintiff Maximiliano Arcos right arm was extremely swollen from being tasered four times.
28. No treatment was offered by Defendant Officers while Plaintiff Maximilian Arcos was unconscious or when he woke up.
29. Plaintiff Maximiliano Arcos requested medical attention but was told by Defendant Officers that they needed to transport him to Central Booking.
30. Plaintiff Maximiliano Arcos was searched pursuant to his unlawful arrest and was fingerprinted and photographed unlawfully at the precinct.
31. While Plaintiff Maximiliano Arcos was in custody, the defendant police officers provided the Kings County District Attorney’s Office with the false, misleading and/or incomplete information that Plaintiff committed a crime.
32. Specifically, the defendant police officers falsely stated to the Kings County District Attorney’s Office that Plaintiff Maximilian Arcos was engaged in obstructing governmental administration in the second degree, resisting arrest, and disorderly conduct.
33. Plaintiff Maximiliano Arcos eventually appeared before the judge and was released after spending approximately three days in police custody.
34. Plaintiff Maximiliano Arcos appeared in court approximately six times before his criminal case was dismissed and sealed on January 26, 2022.
35. After being released at arraignment, Plaintiff Maximiliano Arcos was unable to seek professional medical treatment because he did not have health insurance.
36. Evenutally, Plaintiff Maximiliano Arcos was able to seek treatment and has been enrolled in physical therapy three times a week.
37. Plaintiff Maximiliano Arcos suffered injury to his head, both shoulders, and right arm.
38. Plaintiff Maximiliano Arcos experiences pain, numbness, and weakness in his right arm that interferes with his ability to work and engage in the activites of daily life.
39. Prior to the incident, Plaintiff Maximiliano Arcos worked six days a week. Plaintiff Maximiliano Arcos employment requires lifting heavy items. As a result of his injury, Plaintiff is unable to work in the same position and with the same frequency as prior to his injury.

40. As a result of the incident, Plaintiff Maximiliano Arcos suffered serious emotional injuries, including but not limiting to going into shock when he is in the presence of police officers. Plaintiff Maximilian Arcos does his best to avoid police officers in his daily life.
41. At no time relevant herein did Plaintiff Maximiliano Arcos commit a crime or violate the law in any way, nor did the police officers have an objective reason to accuse Plaintiff of committing a crime or violating the law in any way.
42. At no point did Defendant Officers recover any drugs, weapons, graffiti instruments, or other illegal contraband from Plaintiff Maximiliano Arcos or from a location that was in Plaintiff's possession, custody, or control.
43. Nevertheless, Plaintiff Maximiliano Arcos was unlawfully tased, knocked unconscious, arrested and handcuffed by defendant officers without legal justification or probable cause.
44. Some of the police officer defendants observed the violation of Plaintiff's rights under the Constitution of the United States and New York State Law and did nothing to prevent their fellow officers from unjustifiably assaulting, battering, and using excessive force against Plaintiff Maximilian Arcos.
45. The unlawful assault, battery, and use of excessive force by the individually named defendants caused Plaintiff Maximiliano Arcos to sustain physical, psychological and emotional trauma.

Plaintiff Jesus Arcos-Rodriguez

46. Without warning or reason, Defendant Officers tackled Plaintiff Jesus Arcos-Rodriguez to the ground.
47. A Defendant Officer shoved their knee into Plaintiff Jesus Arcos-Rodriguez's neck.
48. Another Defendant Officer shoved both their knees into Plaintiff Jesus Arcos-Rodriguez's back.
49. Defendant Officers handcuffed Plaintiff Jesus Arcos-Rodriguez before proceeding to punch him in the face.
50. Plaintiff Jesus Arcos-Rodriguez was also pepper sprayed by Defendant Officers while he was handcuffed.
51. Plaintiff Jesus Arcos-Rodriguez was transported to NYU Langone Hospital Brooklyn where he remained for two days before being transported to the precinct
52. Plaintiff Jesus Arcos-Rodriguez was searched incident to his unlawful arrest and was fingerprinted and photographed unlawfully at the precinct.

53. Plaintiff Jesus Arcos-Rodriguez remained at the precinct for approximately 4 hours before being transported to Central Bookings.
54. Plaintiff Jesus Arcos-Rodriguez remained at Central Booking for approximately 1 day before he appeared before the Judge and was released.
55. While Plaintiff Jesus Arcos-Rodriguez was in custody, the defendant police officers provided the Kings County District Attorney's Office with the false, misleading, and/or incomplete information that Plaintiff Jesus Arcos-Rodriguez committed a crime.
56. Specifically, the defendant police officers falsely stated to the Kings County District Attorney's Office that Plaintiff Jesus Arcos-Rodriguez was engaged in obstructing governmental administration in the second degree, resisting arrest, and disorderly conduct.
57. Plaintiff Jesus Arcos-Rodriguez appeared in court approximately three times before his criminal case was dismissed and sealed on January 26, 2022.
58. As a result of this incident, Plaintiff Jesus Arcos-Rodriguez missed two days of work.
59. Additionally, Plaintiff Jesus Arcos-Rodriguez's injuries have made it difficult for him to work since his employment requires lifting heavy items.
60. As of the time of his 50H hearing, approximately 11 months after the incident, Plaintiff Jesus Arcos-Rodriguez still needs to take painkillers to manage the pain.
61. As a result of this incident, Plaintiff Jesus Arcos-Rodriguez struggles with depression since, among other issues stemming from his abuse at the hands of police, he is constantly in pain and unable to play in his soccer league which was his passion.
62. At no time relevant herein did Plaintiff Jesus Arcos-Rodriguez commit a crime or violate the law in any way, nor did the police officers have an objective reason to accuse Plaintiff of committing a crime or violating the law in any way.
63. At no point did Defendant Officers recover any drugs, weapons, graffiti instruments, or other illegal contraband from Plaintiff Jesus Arcos-Rodriguez or from a location that was in Plaintiff's possession, custody, or control.
64. Nevertheless, Plaintiff Jesus Arcos-Rodriguez was unlawfully arrested and handcuffed by defendant officers without legal justification or probable cause, unlawfully fingerprinted, photographed and searched, and unlawfully detained.
65. Some of the police officer defendants observed the violation of Plaintiff's rights under the Constitution of the United States and New York State Law and did nothing to prevent their fellow officers from unjustifiably assaulting, battering, and using excessive force against Plaintiff Jesus Arcos-Rodriguez.

66. The unlawful assault, battery, and use of excessive force by the individually named defendants caused Plaintiff Jesus Arcos-Rodriguez to sustain physical, psychological and emotional trauma.

Plaintiff Alberto Arcos-Rodriguez

67. Defendant Officers punched Plaintiff Alberto Arcos-Rodriguez in the face breaking his glasses.

68. Plaintiff Alberto Arcos-Rodriguez informed Defendant Officers that he had serious physical injuries from a recent construction accident and pleaded with them to stop.

69. Defendant Officers ignored Plaintiff Alberto Arcos-Rodriguez's pleas.

70. Defendant Officers slammed Plaintiff Alberto Arcos-Rodriguez into the ground, kicked him, shoved a knee into his back, and handcuffed him.

71. In doing so, Defendant Officers exacerbated Plaintiff's injuries from the recent construction accident, in addition to causing him serious pain and making him fear further physical injury.

72. Despite Plaintiff Alberto Arcos-Rodriguez's plea for medical attention, Defendant Officers ignored that request and transported him to the precinct.

73. Plaintiff Alberto Arcos-Rodriguez was searched incident to his unlawful arrest and was also unlawfully fingerprinted and photographed at the precinct.

74. Eventually, Plaintiff Alberto Arcos-Rodriguez was transported to Central Booking.

75. While Plaintiff Alberto Arcos-Rodriguez was in custody, the defendant police officers provided the Kings County District Attorney's Office with the false, misleading and/or incomplete information that Plaintiff committed a crime.

76. Specifically, the defendant police officers falsely stated to the Kings County District Attorney's Office that Plaintiff Alberto Arcos-Rodriguez was engaged in obstructing governmental administration in the second degree, resisting arrest, and disorderly conduct.

77. Plaintiff Alberto Arcos-Rodriguez appeared before the judge and was released after spending approximately three days in police custody.

78. Plaintiff Alberto Arcos-Rodriguez appeared in court approximately six times before his criminal case was dismissed and sealed on January 26, 2022.

79. As a result of the incident, Plaintiff Alberto Arcos-Rodriguez's pre-existing physical injuries were significantly exacerbated by the excessive force, assault, and battery of defendant officers.

80. At no time relevant herein did Plaintiff Alberto Arcos-Rodriguez commit a crime or violate the law in any way, nor did the police officers have an objective reason to accuse Plaintiff of committing a crime or violating the law in any way.
81. At no point did Defendant Officers recover any drugs, weapons, graffiti instruments, or other illegal contraband from Plaintiff Alberto Arcos-Rodriguez or from a location that was in Plaintiff's possession, custody, or control.
82. Nevertheless, Plaintiff Alberto Arcos-Rodriguez was unlawfully arrested and handcuffed by defendant officers without legal justification or probable cause, unlawfully fingerprinted, photographed and searched, and unlawfully detained.
83. Some of the police officer defendants observed the violation of Plaintiff's rights under the Constitution of the United States and New York State Law and did nothing to prevent their fellow officers from unjustifiably assaulting, battering, and using excessive force against Plaintiff Alberto Arcos-Rodriguez.
84. The unlawful assault, battery, and use of excessive force by the individually named defendants caused Plaintiff Alberto Arcos-Rodriguez to sustain physical, psychological and emotional trauma.

Plaintiff Yolanda Rodriguez

85. Plaintiff Yolanda Rodriguez was holding a baby when she asked Defendant Officers why they were attacking her family.
86. Defendant Officer punched Plaintiff Yolanda Rodriguez in the chest while she was still holding the child.
87. The punch caused Plaintiff Yolanda Rodriguez to experience serious physical pain and to fear further physical injury.
88. At no time relevant herein did Plaintiff Yolanda Rodriguez commit a crime or violate the law in any way, nor did the police officers have an objective reason to accuse Plaintiff of committing a crime or violating the law in any way.
89. At no point did Defendant Officers recover any drugs, weapons, graffiti instruments, or other illegal contraband from Plaintiff Yolanda Rodriguez or from a location that was in Plaintiff's possession, custody, or control.
90. Nevertheless, Plaintiff Yolanda Rodriguez was unlawfully detained by defendant officers without legal justification or probable cause, and unlawfully searched.
91. Some of the police officer defendants observed the violation of Plaintiff's rights under the Constitution of the United States and New York State Law and did nothing to prevent their

fellow officers from unjustifiably assaulting, battering, and using excessive force against Plaintiff Yolanda Rodriguez.

92. The unlawful assault, battery, and use of excessive force by the individually named defendants caused Plaintiff Yolanda Rodriguez to sustain physical, psychological and emotional trauma.

FIRST CAUSE OF ACTION
Unlawful Stop, Question, and Search

93. The Plaintiffs repeats and realleges the foregoing paragraphs as if the same were fully set forth at length herein.
94. The illegal approach, pursuit, stop and grab employed by defendants herein terminated Plaintiff's freedom of movement through means intentionally applied.
95. The conduct of defendants in approaching, stopping, and grabbing Plaintiffs was performed under color of law and without any reasonable suspicion of criminality or other constitutionally required grounds.
96. As a direct and proximate result of such acts, defendants deprived Plaintiffs of their rights under the laws of the State of New York.
97. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.
98. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

SECOND CAUSE OF ACTION
Violation of Fourth and Fourteenth Amendment Rights:
Unlawful Seizure and Deprivation of Liberty

99. The Plaintiffs repeats and realleges the foregoing paragraphs as if the same were fully set forth at length herein.
100. The individually named police officer defendants, while acting in concert and within the scope of their authority, caused Plaintiffs to be seized, unlawfully searched, falsely arrested, and falsely imprisoned, and maliciously prosecuted without reasonable suspicion and/or probable cause, in violation of Plaintiff's right to be free of an unreasonable seizure under the Fourth Amendment of the Constitution of the United States and to be free of a deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.
101. As a result of the aforementioned conduct of defendants, Plaintiffs sustained injuries, including but not limited to physical, emotional and psychological injuries.

THIRD CAUSE OF ACTION**False Imprisonment**

102. The Plaintiffs repeats and realleges the foregoing paragraphs as if the same were fully set forth at length herein.

103. The acts and conduct of the defendants constitute false arrest and false imprisonment under the laws of the State of New York. Defendants intended to confine Plaintiffs and, in fact, confined Plaintiffs, and Plaintiffs were conscious of the confinement. In addition, Plaintiffs did not consent to the confinement and the confinement was not otherwise privileged.

104. As a direct and proximate result of such acts, defendants deprived Plaintiffs of their rights under the laws of the State of New York and the United States Constitution.

105. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

106. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

107. As a result of the aforementioned conduct of defendants, Plaintiffs sustained injuries, including but not limited to loss of liberty, emotional and psychological injuries.

FOURTH CAUSE OF ACTION**Violation of Plaintiff's Fourth And Fourteenth Amendment Rights:****Excessive Force**

108. The Plaintiffs repeats, reiterates and realleges each and every allegation contained in the foregoing paragraphs with the same force and effect as if more fully set forth at length herein.

109. The use of excessive force by defendants by, amongst other things, punching, kicking, tasing, and pepper spraying Plaintiffs constituted objectively unreasonable physical seizures of Plaintiffs in violation of his rights under the Fourth and Fourteenth Amendments to the Constitution of the United States and to be free of a deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.

110. Defendants were at all times agents, servants, and employees acting within the scope of his employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

FIFTH CAUSE OF ACTION**Assault**

111. The Plaintiffs repeats, reiterates and realleges each and every allegation contained in the foregoing paragraphs with the same force and effect as if more fully set forth at length herein.
112. Defendants, their agents, servants and employees, acting within the scope of their employment, intentionally, willfully and maliciously assaulted Plaintiffs in that they had the real or apparent ability to cause imminent harmful and/or offensive bodily contact and intentionally did a violent and/or menacing act which threatened such contact to the Plaintiffs, that such acts caused apprehension of such contact in the Plaintiffs.
113. As a direct and proximate result of such acts, defendants deprived Plaintiffs of their rights under the laws of the State of New York.
114. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.
115. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.
116. As a result of the aforementioned conduct of defendants, Plaintiffs sustained injuries, including but not limited to emotional and psychological injuries.

SIXTH CAUSE OF ACTION**Battery**

117. The Plaintiffs repeats, reiterates and realleges each and every allegation contained in the foregoing paragraphs with the same force and effect as if more fully set forth at length herein.
118. Defendants, their agents, servants and employees, acting within the scope of their employment, intentionally, willfully and maliciously battered Plaintiffs, when they, in a hostile and/or offensive manner punched, kicked, tased, and pepper sprayed Plaintiffs, brutally effecting an arrest of Plaintiffs without their consent and with the intention of causing harmful and/or offensive bodily contact to the Plaintiffs and caused such battery.
119. As a direct and proximate result of such acts, defendants deprived Plaintiffs of their rights under the laws of the State of New York.
120. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.
121. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

122. As a result of the aforementioned conduct of defendants, Plaintiffs sustained injuries, including but not limited to emotional and psychological injuries.

SEVENTH CAUSE OF ACTION
Negligent Infliction of Emotional Distress

123. The Plaintiffs repeats, reiterates and realleges each and every allegation contained in the foregoing paragraphs with the same force and effect as if more fully set forth at length herein.

124. By the actions described herein, defendants, each acting individually and in concert with each other, engaged in extreme and outrageous conduct, conduct utterly intolerable in a civilized community, which negligently caused severe emotional distress to Plaintiffs. The acts and conduct of the defendants were the direct and proximate cause of injury and damage to Plaintiffs and violated Plaintiff's statutory and common law rights as guaranteed by the laws and Constitution of the State of New York.

125. The acts and conduct of the defendants were the direct and proximate cause of injury and damage to Plaintiffs and violated Plaintiff's statutory and common law rights as guaranteed Plaintiffs by the laws and Constitution of the State of New York.

126. As a direct and proximate result of such acts, defendants deprived Plaintiffs of their rights under the laws of the State of New York.

127. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

128. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.

129. As a result of the aforementioned conduct of defendants, Plaintiffs sustained injuries, including but not limited to emotional and psychological injuries.

EIGHTH CAUSE OF ACTION
Negligent Hiring, Retention, Training and Supervision

130. The Plaintiffs repeats, reiterates and realleges each and every allegation contained in the foregoing paragraphs with the same force and effect as if more fully set forth at length herein.

131. The City of New York and its employees, servants and/or agents acting within the scope of their employment did negligently hire, retain, train and supervise defendants, individuals who were unfit for the performance of police duties on the aforementioned dates at the aforementioned locations.

132. As a result of the aforementioned conduct of defendants, Plaintiffs sustained injuries, including but not limited to physical, emotional and psychological injuries.

NINTH CAUSE OF ACTION

Failure to Intervene

133. The Plaintiffs repeats, reiterates and realleges each and every allegation contained in the foregoing paragraphs with the same force and effect as if more fully set forth at length herein.

134. The defendants that did not physically touch Plaintiffs, but were present when other officers violated Plaintiff's Constitutional Rights had an affirmative duty to intervene on behalf of Plaintiffs, whose constitutional rights were being violated in their presence by other officers.

135. Defendants failed to intervene to prevent the unlawful conduct described herein.

136. As a result of the foregoing, Plaintiff's suffered serious, debilitating and permanent injury, their liberty was restricted for an extended period of time, they was put in fear of their safety, their injuries worsened, they did not receive necessary medical treatment, and they were humiliated and subject to other physical constraints.

137. As a direct and proximate result of such acts, defendants deprived Plaintiffs of their rights under the laws of the State of New York.

138. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

139. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

140. As a result of the aforementioned conduct of defendants, Plaintiffs sustained injuries, including but not limited to emotional and psychological injuries.

TENTH CAUSE OF ACTION

Violation of Fourth And Fourteenth Amendment Rights:

Denial of Right to Fair Trial/Due Process

(all Plaintiffs except for Plaintiff Yolanda Rodriguez)

141. The Plaintiffs repeats and realleges the foregoing paragraphs as if the same were fully set forth at length herein.

142. Defendants, individually and collectively, manufactured and/or withheld false evidence and forwarded this false evidence to prosecutors in the Kings County District Attorney's Office.

143. Defendants filled out false and misleading police reports and forwarded them to prosecutors in the Kings County District Attorney's Office.

144. Defendants signed false and misleading criminal court affidavits and forwarded them to prosecutors in the Kings County District Attorney's Office.
145. In withholding/creating false evidence against Plaintiffs, and in providing/withholding information with respect thereto, Defendants violated Plaintiff's constitutional right to due process and fair trial under the New York State Constitution and under the Due Process Clause of the Fifth Amendment to the Constitution of the United States and to be free to deprivation of liberty under the Fourteenth Amendment to the United States Constitution.
146. As a result of the foregoing, Plaintiffs sustained, inter alia, loss of the right to due process and a fair trial, loss of liberty, emotional distress, embarrassment and humiliation, and deprivation of his constitutional rights.
147. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.
148. The City, as the employer of the officer Defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.
149. As a result of the aforementioned conduct of Defendants, Plaintiffs sustained injuries including, but not limited to: economic, emotional and psychological injuries.

ELEVENTH CAUSE OF ACTION

Malicious Prosecution

(all Plaintiffs except for Plaintiff Yolanda Rodriguez)

150. The Plaintiffs repeats and realleges the foregoing paragraphs as if the same were fully set forth at length herein.
151. The acts and conduct of the Defendants constitute malicious prosecution under the United States Constitution.
152. Defendants commenced and continued a criminal proceeding against Plaintiff.
153. There was actual malice and an absence of probable cause for the criminal proceeding against Plaintiffs and for each of the charges for which they were prosecuted.
154. The prosecution and criminal proceedings terminated in Plaintiff's favor on the aforementioned dates.

TWELFTH CAUSE OF ACTION**Deliberate Indifference to Medical Needs***(all Plaintiffs except for Plaintiff Yolanda Rodriguez)*

155. The Plaintiffs repeats and realleges the foregoing paragraphs as if the same were fully set forth at length herein.
156. Defendants despite being aware that Plaintiffs was suffering from being punched, kicked, tasered, and pepper sprayed delayed Plaintiff's medical treatment and refused to administer and properly procure immediate and adequate medical attention.
157. The delay in medical treatment to Plaintiff's injuries resulted in a month-long hospitalization, increased severity in Plaintiff's nephrological injuries that were suffered by Plaintiffs that would have been prevented if Plaintiffs received treatment in a timely manner.
158. As a direct and proximate result of such acts, defendants deprived Plaintiffs of their rights under the laws of the State of New York.
159. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.
160. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.
161. As a result of the aforementioned conduct of defendants, Plaintiffs sustained injuries, including but not limited to emotional and psychological injuries.

THIRTEENTH CAUSE OF ACTION**Individual Defendant Officer's Violation of Plaintiff's AC 8-802 Rights**

162. The Plaintiffs repeats and realleges the foregoing paragraphs as if the same were fully set forth at length herein.
163. The acts of Defendant Officers constituted conduct under color of any law, ordinance, rule, regulation, custom or usage.
164. The acts of Defendant Officers caused Plaintiffs to be deprived of their rights under 2021 N.Y.C. Local Law No. 48, N.Y.C. Admin. Code §§ 8 – 802, to wit: to be secure in their person, house, papers, and effects against unreasonable searches and seizures, and to be secure against the use of excessive force regardless of whether such force is used in connection with a search or seizure.
165. The Defendant Officers, while in uniform, unlawfully punched, threw to the ground, tased, maced, seized, frisked, and searched the various Plaintiffs, before detaining plaintiffs for various durations of time.

166. By reason of the acts and omissions by Defendants described above, Plaintiffs have endured physical and emotional injuries and was otherwise damaged and injured.

FOURTEENTH CAUSE OF ACTION

Individual Defendant Officer's Failure to Intervene in Violation of Plaintiff's AC 8-802 Rights

167. The Plaintiffs repeats and realleges the foregoing paragraphs as if the same were fully set forth at length herein.

168. The acts of Defendant Officers constituted conduct under color of any law, ordinance, rule, regulation, custom or usage.

169. Defendant Officers had a duty to protect Plaintiffs from violations of their rights under 2021 N.Y.C. Local Law No. 48, N.Y.C. Admin. Code §§ 8 – 802, to wit: to be secure in their person, house, papers, and effects against unreasonable searches and seizures, and to be secure against the use of excessive force regardless of whether such force is used in connection with a search or seizure.

170. The Defendants that did not physically touch Plaintiffs, but were present when other officers violated Plaintiff's AC 8-802 right against unreasonable search and seizure and excessive force had an affirmative duty to intervene on behalf of Plaintiffs, whose constitutional rights were being violated in their presence by other officers.

171. Defendants failed to intervene to prevent the unlawful conduct described herein, thereby failed in their duty to intervene to protect Plaintiffs from violation of their rights.

172. By reason of the acts and omissions by Defendants described above, Plaintiffs have endured physical and emotional injuries and was otherwise damaged and injured.

FIFTHTEENTH CAUSE OF ACTION

City-Employer's Liability for Defendant Officer's Violation of Plaintiff's AC 8-802 Rights

173. The Plaintiffs repeats and realleges the foregoing paragraphs as if the same were fully set forth at length herein.

174. Defendant Officers are "covered individuals" as defined in 2021 N.Y.C. Local Law No. 48, N.Y.C. Admin. Code §§ 8 - 801 in that they are employees of the Police Department or persons appointed by the Police Commissioner as a Special Patrolmen.

175. The City of New York, as the employer of the covered individual Defendant Officers, is liable to the Plaintiffs for the wrongdoing of the covered individual Defendant Officers.

176. The acts of Defendant Officers constituted conduct under color of any law, ordinance, rule, regulation, custom or usage.

177. The acts of Defendant Officers caused Plaintiffs to be deprived of their rights under 2021 N.Y.C. Local Law No. 48, N.Y.C. Admin. Code §§ 8 – 802, to wit: to be secure in their person, house, papers, and effects against unreasonable searches and seizures, and to be secure against the use of excessive force regardless of whether such force is used in connection with a search or seizure.
178. The Defendant Officers, while in uniform, unlawfully punched, threw to the ground, tased, maced, seized, frisked, and searched the various Plaintiffs, before detaining plaintiffs for various durations of time.
179. By reason of the acts and omissions by Defendants described above, Plaintiffs have endured physical and emotional injuries and was otherwise damaged and injured.

SIXTEENTH CAUSE OF ACTION

City-Employer's Liability for Defendant Officer's Failure to Intervene in Violation of Plaintiff's AC 8-802 Rights

180. The Plaintiffs repeats and realleges the foregoing paragraphs as if the same were fully set forth at length herein.
181. Defendant Officers are “covered individuals” as defined in 2021 N.Y.C. Local Law No. 48, N.Y.C. Admin. Code §§ 8 - 801 in that they are employees of the Police Department or persons appointed by the Police Commissioner as a Special Patrolmen.
182. The City of New York, as the employer of the covered individual Defendant Officers, is liable to the Plaintiffs for the wrongdoing of the covered individual Defendant Officers.
183. The acts of Defendant Officers constituted conduct under color of any law, ordinance, rule, regulation, custom or usage.
184. Defendant Officers had a duty to protect Plaintiffs from violations of their rights under 2021 N.Y.C. Local Law No. 48, N.Y.C. Admin. Code §§ 8 – 802, to wit: to be secure in their person, house, papers, and effects against unreasonable searches and seizures, and to be secure against the use of excessive force regardless of whether such force is used in connection with a search or seizure.
185. The Defendants that did not physically touch Plaintiffs but were present when other officers violated Plaintiff's AC 8 – 802 rights against unreasonable search and seizure and excessive force had an affirmative duty to intervene on behalf of Plaintiffs, whose constitutional rights were being violated in their presence by other officers.
186. Defendants failed to intervene to prevent the unlawful conduct described herein, thereby failed in their duty to intervene to protect Plaintiffs from violation of his rights.

187. By reason of the acts and omissions by Defendants described above, Plaintiffs have endured physical and emotional injuries and was otherwise damaged and injured.

SEVENTEENTH CAUSE OF ACTION

Violation of Article I, § 12 of the New York State Constitution

188. Plaintiffs repeats, reiterates, and re-alleges each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.

189. Such conduct breached the protections guaranteed to plaintiffs by the New York State Constitution, including but not limited to, Article 1, §§ 1, 6, 8, 9, 11, and 12, and including the following rights:

- i. freedom from unreasonable search and seizure of their person and property;
- ii. freedom from arrest without probable cause;
- iii. freedom from false imprisonment, that being wrongfully detained without good faith, reasonable suspicion, or legal justification, and of which wrongful detention plaintiff was aware and did not consent;
- iv. freedom from the lodging of false charges against them by police officers and prosecutors, including on information and belief, by some or all of the individual defendants; and
- v. freedom from deprivation of liberty without due process of law.

190. As a direct and proximate result of defendants' deprivations of Plaintiff's rights, privileges, and immunities guaranteed by the New York State Constitution, Plaintiffs suffered physical, economic and emotional injuries, as well as a deprivation of liberty.

191. As a result of the above tortious conduct, Plaintiffs were caused to suffer physical, economic, and emotional injuries, as well as a deprivation of liberty.

192. As a result of the above unconstitutional conduct, the City of New York is liable for the conduct of the Individual Defendants and any damages they caused under the doctrine of *respondeat superior*.

JURY DEMAND

193. Plaintiffs hereby demands trial by jury of all issues properly triable thereby.

PRAYER FOR RELIEF

WHEREFORE, Plaintiffs Alberto Arcos-Rodriguez, Jesus Arcos-Rodriguez, Yolanda Rodriguez, and Maximilliano Arcos demands judgment against the defendants on each cause of action in amounts to be determined upon the trial of this action which exceeds the jurisdiction of lower courts, inclusive of punitive damages and attorneys' fees inclusive of costs and disbursements of this action, interest and such other relief as is appropriate under the law,

and that the Plaintiffs recover the cost of the suit herein, including reasonable attorney's fees pursuant to 42 U.S.C. § 1988 and 2021 N.Y.C. Local Law No. 48, N.Y.C. Admin. Code §§ 8 – 801 *et seq.*.

Dated: New York, New York
July 27, 2022

By: C. Cass Luskin
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TO: THE CITY OF NEW YORK, Corporation Counsel, 100 Church Street, NY, NY 10007
OFFICER MICHAEL YEN, 830 4th Avenue, Brooklyn, New York, 11232
OFFICER KYLE SFORZA, 830 4th Avenue, Brooklyn, New York 11232

ATTORNEY'S VERIFICATION

C. CASS LUSKIN, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am an associate of the law firm of **SHULMAN-HILL PLLC**, I have read the annexed **VERIFIED COMPLAINT** and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files. The reason this verification is made by me and not Plaintiff is because Plaintiff does not reside in the county wherein I maintain my office.

DATED: New York, New York
July 27, 2022

C. Cass Luskin
C. CASS LUSKIN